

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #07	CCRB Case #: 202203327	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/22/2022 10:03 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/22/2023	Precinct: 63		
Date/Time CV Reported Tue, 05/24/2022 6:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 05/24/2022 6:26 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Seungwoo Seo	02678	940729	063 PCT
2. PO Asia Stewart	09842	938490	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Demetrius Reynolds	24460	970132	063 PCT
2. PO Anthea Dryden	03022	967490	063 PCT
3. PO Rosa Santizo	05903	972944	063 PCT
4. PO Daniel Calixte	00863	946815	063 PCT
5. PO Mario Bueno	23913	952507	063 PCT
6. PO Crystal Parker	05357	972849	063 PCT
7. PO Carolyn Clark	24268	962984	063 PCT
8. PO Janelle Matera	14574	956896	063 PCT
9. DT3 Samuel Brown	03098	936248	063 DET

Officer(s)	Allegation	Investigator Recommendation
A . PO Asia Stewart	Abuse: Police Officer Asia Stewart entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . SGT Seungwoo Seo	Abuse: Sergeant Seungwoo Seo forcibly removed § 87(2)(b) to the hospital.	B . Exonerated

Case Summary

On May 24, 2022, § 87(2)(b) filed this complaint via the CCRB website.

On May 22, 2022, § 87(2)(b) was at her home, located at § 87(2)(b) in Brooklyn, when she placed calls to the 63rd Precinct to insist that no criminal charges be filed against her boyfriend with respect to a report officers filed after a complaint she had recently filed. Numerous officers, including PO Asia Stewart, Sgt. Seungwoo Seo, PO Demetrius Reynolds, PO Anthea Dryden, PO Rosa Santizo, PO Daniel Calixte, PO Mario Bueno, PO Crystal Parker, PO Carolyn Clark, and PO Janelle Matera, all of the 63rd Precinct, arrived at § 87(2)(b) home at approximately 10:03 a.m. PO Stewart spoke with § 87(2)(b) who entered her home, and PO Stewart followed her inside (**Allegation A –Abuse of Authority: Entry of premises, substantiated**). After officers spoke with § 87(2)(b) and her friend, § 87(2)(b) exited the residence, entered an ambulance, and was transported to a hospital under Sgt. Seo's supervision (**Allegation B –Abuse of Authority: Forcible Removal to Hospital, exonerated**).

§ 87(2)(b) was not arrested or issued a summons as a result of this incident.

The CCRB received Body-Worn Camera (BWC) footage recorded by officers during this incident from the NYPD's Legal Bureau. The footage was recorded by numerous officers and was attached to IAs 19 through 28 (Board Review 01 through 10) and summarized (Board Review 11).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Asia Stewart entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Seungwoo Seo forcibly removed § 87(2)(b) to the hospital.

It is undisputed that, on May 22, 2022, PO Stewart entered § 87(2)(b) in Brooklyn and that officers initiated their interaction with § 87(2)(b) with an alleged threat of self-harm that she made, resulting in a 911 call and officers subsequently transporting her to a hospital for psychiatric treatment.

§ 87(2)(b) stated to the CCRB (Board Review 12) that prior to this incident, she had received and placed calls to members of the NYPD related to an incident during which her boyfriend had held her down by her wrists and forearms, causing contusions. Immediately prior to this incident, § 87(2)(b) repeatedly called the 63rd Precinct, stressing that she wished to press no charges against her boyfriend. After this, at approximately 10:30 a.m. on May 22, 2022, numerous officers arrived at her home, where she was inside with her friend, § 87(2)(b) thought officers came because she had told an officer via telephone that the paperwork related to her complaint was "making her sick." § 87(2)(b) did not attest to whether or how any officers entered her home.

After officers arrived at § 87(2)(b) home, an Emergency Medical Technician (EMT) instructed her to go outside, which she did, and she entered an ambulance. § 87(2)(b) told the EMT that there was no need for her to go to a hospital, and the EMT told her that she could not exit the ambulance and would either be transported to a hospital in her current state or in handcuffs. § 87(2)(b) was then transported to a hospital, where she underwent a psychiatric evaluation.

In an NYPD Event related to this incident (Board Review 13), at approximately 9:45 a.m. on May 22, 2022, it was reported to 911 by Det. Brown of the 63rd Precinct that § 87(2)(b) had called the stationhouse and stated that she had problems with her boyfriend and that if he were to be arrested, she would kill herself. An Emergency Medical Services (EMS) unit was dispatched at 9:49 a.m.,

prior to officers' arrival at the location at 10:03 a.m.

In the BWC footage PO Stewart recorded (Board Review 07), at the 01m20s mark, § 87(2)(b) stands on an external landing near officers. PO Stewart speaks to Sgt. Seo, stating, "Um, Samuel just called. Samuel called; he talked to her. She's doing that because her boyfriend's supposed to get locked up from a DV incident. He doesn't know the boyfriend's name. So, if there's a guy inside the house, he asked me to get the ID to find out and ID him and call him back. If it's the same guy, we're gonna bring him back to § 87(2)(b). They're gonna take him. But she called the precinct, speaking to PDU, saying she's gonna kill herself because she doesn't want her boyfriend locked up. So he's basically like, 'EDP her because she wants to make threats of killing herself and find out if anyone's in the house.'" Sgt. Seo says, "Okay, let's do that. I think somebody's in there. Let's find out."

PO Stewart walks towards the entry door and asks § 87(2)(b) whether anyone else is in the home. § 87(2)(b) says that a friend is inside it. PO Stewart asks this individual's gender, and § 87(2)(b) states he is male. PO Stewart asks if the friend is okay, which § 87(2)(b) affirms. PO Stewart says, "We have to check just to make sure everything is okay." § 87(2)(b) says, "Yeah," walks to the door, opens it, and walks inside, saying, "I'll call him down." PO Stewart follows immediately behind her in the door, which remains ajar.

In the BWC footage PO Reynolds recorded (Board Review 02), at the 19m21s mark, an EMS worker in the ambulance says, "Given the nature of the call, given what you said to whoever, those are a red flag to us and to PD where we would like for you to get checked out." § 87(2)(b) says, "I don't need to get checked out." The EMS worker says, "Yeah. But the thing is, as per our protocols, we can't just be like, 'Okay. You said, 'Okay, I'm going to just kill myself' in a jokingly manner' and then let you go." § 87(2)(b) says, "No, that's not what I meant to say. I told him that I needed help."

PO Stewart stated to the CCRB (Board Reviews 14 and 15) that around the time of this incident, she received a call from Det. Samuel Brown of the 63rd Precinct Detective Squad, who asked whether PO Stewart was responding to a 911 call he had placed, and PO Stewart told Det. Brown that she was backing the officers who initially responded to the call and was going to the location.

Det. Brown informed PO Stewart that § 87(2)(b) called the 63rd Precinct and told him that she wanted charges, the nature of which PO Stewart did not know beyond a relationship to a domestic violence complaint, against her boyfriend dropped. Det. Brown told § 87(2)(b) that the charges could not be dropped, and § 87(2)(b) said that if the charges were not dropped, she would kill herself. Det. Brown then called 911 to report this threat of self-harm. PO Stewart thought that this series of interactions and nothing else caused officers to go to the location.

When PO Stewart arrived at § 87(2)(b), there were five to six officers present. PO Stewart did not know if Det. Brown spoke to these officers prior to their arrival. Officers spoke with § 87(2)(b) outside the residence. § 87(2)(b) stated that she had been in the house with an unidentified male friend. PO Stewart asked if he was okay, which § 87(2)(b) affirmed.

Because Det. Brown had informed PO Stewart via telephone that, during his conversation with § 87(2)(b) he heard a voice he thought to be that of a male, and because § 87(2)(b) affirmed that a male was inside the residence, PO Stewart thought that the person inside may have been the male against whom § 87(2)(b) stated she wished to drop criminal charges prior to making a threat of self-harm to Det. Brown. PO Stewart thought that this male may have been present at the time of this threat and was coercing § 87(2)(b) and posing a physical threat to her. PO Stewart did not hear

anything at the residence, prior to entering, that led her to believe a male was inside it. Other than § 87(2)(b) reported threat of self-harm, there was nothing that suggested to PO Stewart that § 87(2)(b) was in danger.

PO Stewart acknowledged hearing in the BWC footage she recorded her statement to the effect of, “We have to go in to make sure everyone is okay.” When presented with her previous testimony of requesting § 87(2)(b) consent to enter the building, PO Stewart stated to the CCRB that she interpreted the statement above as a request for consent. After this, § 87(2)(b) then said, “Yeah,” opened the building’s entry door, and walked inside, saying, “I’ll call him down.” When asked whether she waited for § 87(2)(b) to call someone down, PO Stewart stated that due to the nature of the call involving an Emotionally Disturbed Person (EDP), she could not lose visual contact with § 87(2)(b) in the event that § 87(2)(b) might enter a room where she could harm herself or others.

PO Stewart walked inside and up a flight of stairs behind § 87(2)(b). PO Stewart did so because of the following reasons: the information Det. Brown provided to PO Stewart about the possibility that a male was inside the building with § 87(2)(b) at the time she made a threat of self-harm to him; the statement PO Stewart made to § 87(2)(b) about checking to ensure the safety of those present; § 87(2)(b) saying, “Yeah,” opening the building door, entering the building, and leaving PO Stewart’s line of sight; PO Stewart’s thought that the male who § 87(2)(b) acknowledged to be in the residence may have been related to the domestic violence charges that § 87(2)(b) wished to have dropped. No officer instructed PO Stewart to enter the building.

Sgt. Seo stated to the CCRB (Board Review 16) that § 87(2)(b) was transported to a hospital because she had expressed via telephone to a member of service that she wished to commit suicide, that she stated at the incident location that she suffered from depression and took medication for OCD, and for no other reason. § 87(2)(b) did not verbally protest going to a hospital, and Sgt. Seo did not hear her making any such statement to an officer. § 87(2)(b) did not physically resist moving to the ambulance.

§ 87(2)(g)

In Payton v. New York, 445 U.S. 573 (Board Review 17), it was ruled that officers may not make an entry into a home without a warrant, consent to enter, or other exigent circumstances.

The NYPD Patrol Guide Procedure 221-13 (Board Review 18) defines an Emotionally Disturbed Person (EDP) as someone who appears to be mentally ill or temporarily deranged and acting in a manner which an officer reasonably believes is likely to result in serious injury to that person or others. In the event that an EDP is unarmed, not violent, and willing to leave voluntarily, a member of service is to take, without specific direction of a supervisor, the EDP into custody and have them removed to a hospital in an ambulance.

When considering the potential factors permitting an officer’s warrantless entry of a home under Payton v. New York, the investigation found the following: the officers present during this incident responded to a 911 call and did not have a warrant. The investigation does not credit that PO Stewart’s affirmative statement beginning with “We have to go in” could be reasonably construed as a request for consent to do so.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be substantiated.

§ 87(2)(g)

§ 87(2)(b) who was unarmed and non-violent, then voluntarily moved to an ambulance for transport. It was only after officers relinquished custody of § 87(2)(b) to EMS personnel that she protested being transported to a hospital. § 87(2)(g)

It is therefore recommended that **Allegation B** be exonerated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- PO Stewart has been a member of service for seventeen and has been a subject in two CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Seo has been a member of service for sixteen and has been a subject in eight CCRB complaints and seventeen allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 12, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 20).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator:



Signature

SI Chris Anderson

Print Title & Name

08/24/2023

Date

Manager Vanessa Rosen

August 24, 2023

Squad Leader:

Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date